

Aman Seth vs State Of Uttarakhand on 12 February, 2013

Author: Prafulla C. Pant

Bench: Prafulla C. Pant

1

IN THE HIGH COURT OF UTTARAKHAND AT
NAINITAL

Criminal Writ Petition No. 137 of 2013
with
Urgency Application No. 783 of 2013
Interim Relief Application No. 773 of 2013

1. Aman Seth
S/o Sanjay Kumar Seth
2. Sanjay Kumar Seth
S/o Late R.C. Seth
3. Smt. Arti Seth
W/o SAnjay Kumar Seth
4. Abhimanu Seth
S/o SAnjay Kumar Seth
All above R/o Gorkha Basti
Near P.O Selaqui, Selaqui District Dehradun

..... Petitioners

Versus

1. State of Uttarakhand, through
Home Secretary Secretariat Dehradun
2. Station House Officer
Police Station Raipur
District Dehradun
3. Smt. Neha Seth
W/o Aman Seth
D/o Shri Madan Khare
R/o Sumanpuri, Sahastradhara Crossing
P.S. Raipur District Dehradun

.....Respondents.

Shri D.C.S. Rawat, Advocate, holding brief of Shri Lokendra Dobhal,
Advocate, present for the petitioners.

Shri Hari Om Bhakuni, Brief Holder, present for the State.

2

Hon'ble Prafulla C. Pant, J.

Urgency Application No. 783 of 2013 is allowed.

(2) Heard.

(3) By means of this writ petition moved under Article 226 of Constitution of India, the petitioners have sought quashing of the First Information Report dated 28.11.2012, registered as Crime No. 155 of 2012, relating to offences punishable under section 498A, 323 and 504 of I.P.C., and one punishable under section 3/4 of Dowry Prohibition Act, 1961, at Police Station Raipur, District Dehradun.

(4) Learned counsel for the petitioners pointed out that there is no mention whatsoever in the First Information Report as to what was the demand of dowry and when it was made. It is contended that marriage between the respondent no.3 Neha and petitioner no.1 Aman Seth was a love marriage. It is further pleaded that after filing the joint divorce petition under section 13B of Hindu Marriage Act, the respondent no. 3 has got lodged the First Information Report only to pressurize the petitioner no.1, against him and his family members, which is abuse of process of law.

(5) Admit the petition.

(6) Learned counsel for the State prays for and is allowed six weeks' time to file the counter affidavit.

(7) Issue notice to respondent no.3, Mrs. Neha Seth, who may also file her counter affidavit within a period of six weeks.

(8) Having heard learned counsel for the petitioners, and learned counsel for the State, as an interim measure, it is directed that the petitioners namely Aman Seth, Sanjay Kumar Seth, Arti Seth and Abhimanu Seth shall not be arrested in connection with Crime No. 155 of 2012, relating to offences punishable under section 498A, 323 and 504 of I.P.C., and one punishable under section 3/4 of Dowry Prohibition Act, 1961, registered at Police Station Raipur, District Dehradun, during investigation, provided they cooperate with the investigating agency. (Interim Relief Application No. 773 of 2013 stands disposed of).

(9) List after six weeks.

(Prafulla C. Pant, J.) (Vacation Judge) Dt.12.02.2013 NP